

Index # /2022

Filed: /2022

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
PAUL FAERSTEIN,

Plaintiff designates

KINGS County as

Place of Venue

Plaintiff,

Basis of Venue:

CPLR §504(3)

- against -

SUMMONS

CITY OF NEW YORK, NYPD POLICE OFFICER
SHANNON K. FAHY, Individually and
in her Official Capacity, SARGENT JOHN P. CHRISTIE,
Individually and in his Official Capacity
and Other Unidentified Members of the New York
Police Department,

Plaintiff Resides at

136 Exeter Street

Brooklyn, New York

Defendants.

-----X
To the Above Named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's attorneys within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
January 31, 2022

Yours, etc.

/s/ *Melvin B. Berfond*

MELVIN B. BERFOND

Attorney for Plaintiff

277 Broadway, Suite 810

New York, New York 10007

(212) 385-4800

Defendant's Addresses:

CITY OF NEW YORK
c/o GEORGIA M. PESTANA
Corporation Counsel of the
City of New York
100 Church Street, Room 5-319
New York, New York 10007

NYPD POLICE OFFICER
SHANNON K. FAHY
NYPD 60th Precinct
2951 West 8th Street
Brooklyn, New York 11224

SARGENT JOHN P. CHRISTIE
NYPD 60th Precinct
2951 West 8th Street
Brooklyn, New York 11224

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
PAUL FAERSTEIN,

Plaintiff,

Index No.:

- against -

VERIFIED COMPLAINT

CITY OF NEW YORK, NYPD POLICE OFFICER
SHANNON K. FAHY, Individually and
in her Official Capacity, SARGENT JOHN P. CHRISTIE,
Individually and in his Official Capacity
and Other Unidentified Members of the New York
Police Department,

Defendants.
-----X

Plaintiff PAUL FAERSTEIN ("Plaintiff"), by his attorney, Melvin B. Berfond, Esq. for his
complaint, respectfully alleges the following upon information and belief:

PRELIMINARY STATEMENT

1. This is an action brought to vindicate Plaintiff's rights under New York State law
for false arrest, abuse of process, negligence, infliction of emotional distress and under Federal
law for violations of his civil rights through 42 U.S.C. Section 1983 in that Plaintiff was falsely
arrested and imprisoned in violation of his Fourth Amendment rights under the Constitution of the
United States of America.

NOTICE OF CLAIM

2. On February 18, 2021, Plaintiff caused a Notice of Claim to be served upon
defendant CITY OF NEW YORK.

3. The Notice of Claim was properly delivered through the electronic filing portal
designated by law for this purpose.

4. The Notice of Claim was in writing, sworn to by Plaintiff, and contained the name and post office address of the Plaintiff and Plaintiff's attorney, the nature of the claim, the time when, the place where and the manner by which the claim arose, and the damages and injuries claimed to have been sustained.

5. On January 17, 2022, Plaintiff appeared for a hearing pursuant to General Municipal Law Section 50-h.

6. Defendant CITY OF NEW YORK has failed and refused to pay and/or adjust the claim within the statutory period of time.

7. This action has been commenced within one year and ninety days of the occurrences upon which the claims are based.

8. Plaintiff has complied with all conditions precedent applicable to the instant action.

PARTIES

9. Plaintiff is a resident of the County of Kings in the State of New York.

10. Defendant CITY OF NEW YORK is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The Defendant assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by NYPD.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on

behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

12. At all relevant times, the defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

13. The defendant CITY OF NEW YORK is liable for the acts and failure to act of the individually named defendants under the doctrine of *respondeat superior*.

STATEMENT OF FACTS

14. On November 21, 2020 at approximately 8:00 p.m., at the 60th NYPD precinct Plaintiff was placed under arrest by Police Officer Shannon K. Fahy and Sargent John P. Christie.

15. Plaintiff was charged with violating New York City Administrative Code 26-521 (Unlawful Eviction).

16. Plaintiff was imprisoned in the 60th precinct holding cell for approximately five hours and issued a Desk Appearance Ticket to appear in Criminal Court.

17. There was no basis for or probable cause for the arrest and detention of Plaintiff. New York City Administrative Code 26-521 (Unlawful Eviction) does not apply to any of the allegations against Paul Faerstein.

AND FOR A FIRST CAUSE OF ACTION (False Arrest and False Imprisonment)

18. Plaintiff incorporates by reference the allegations set forth in paragraphs “1” through “17” inclusive as if fully set forth herein.

19. On the aforesaid date and place, the defendant, CITY OF NEW YORK, its agents, servants and/or employees, intentionally confined Plaintiff and/or restricted Plaintiff's freedom of movement.

20. Plaintiff was conscious of said confinement and/or restriction.

21. Plaintiff did not consent to said confinement and/or restriction.

22. The confinement and/or constriction was not otherwise privileged.

23. By the actions described above, the defendant, CITY OF NEW YORK caused Plaintiff to be falsely imprisoned, falsely arrested, without probable cause, illegally and without an arrest warrant.

24. The individual conduct alleged herein occurred while the officers were on duty and in uniform, and/or in and during the course and scope of their duties and functions as NYPD police officers, and/or while they were acting as the CITY OF NEW YORK's agents and employees, clothed with and/or invoking state power and/or authority, and, as a result, the CITY OF NEW YORK is liable to for Plaintiff's false imprisonment.

25. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered bodily injury, pain and suffering and emotional injury, costs and expenses, and was otherwise damaged and injured and is entitled to damages exceeding the jurisdiction of all lower courts.

**AND FOR A SECOND CAUSE OF ACTION
(Negligent Hiring, Supervision and Retention)**

26. Plaintiff incorporates by reference the allegations set forth in paragraphs "1" through "25" inclusive as if fully set forth herein.

27. Defendant, CITY OF NEW YORK, was negligent in hiring and/or retaining employees who it knew or should have known were not fit to be police officers.

28. Defendant, CITY OF NEW YORK, negligently trained or failed to train its agents, servants and/or employees with regard to the proper procedures to follow under the circumstances as they appeared herein; negligently supervised or failed to supervise its agents, servants and/or employees engaged in such practices; negligently disciplined or failed to discipline its agents, servants and/or employees in such practices.

29. Defendant, CITY OF NEW YORK, failed to properly or effectively train, supervise and discipline its agents, servants and/or employees with regard to proper procedure under the circumstances as they appeared herein.

30. Defendant, CITY OF NEW YORK, was negligent in its retention of its agents, servants and/or employees, including the police officers involved in the unreasonable stop, assault, battery, arrest and prosecution of Plaintiff on November 21, 2020.

31. Defendant CITY OF NEW YORK knew, or in the course of proper and adequate investigation should have known the police officers involved in the unreasonable arrest and prosecution of Plaintiff on November 21, 2020 were unfit to continue to hold their positions of authority.

32. Defendant, CITY OF NEW YORK was negligent in hiring and/or retaining employees who it knew or should have known were not fit to be police officers including the police officers involved in the arrest and prosecution Plaintiff herein on November 21, 2020.

33. As a result of the foregoing the injuries suffered by Plaintiff include serious injury, humiliation, pain, and loss of earnings, loss of freedom and loss to reputation.

34. As a result of the foregoing, Plaintiff demands judgment against defendant CITY OF NEW YORK in a sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

**AND FOR A THIRD CAUSE OF ACTION
(Abuse of Criminal Process)**

35. Plaintiff incorporates by reference the allegations set forth in paragraphs “1” through “34” inclusive as if fully set forth herein.

36. Defendants issued a Desk Appearance Ticket to Plaintiff to harass him.

37. The defendants’ purpose in issuing the Desk Appearance Ticket was malicious and designed to harm Plaintiff.

38. As a result of the foregoing, Plaintiff suffered injuries.

39. As a result of the foregoing, defendant CITY OF NEW YORK is liable under the doctrine of *respondent superior* for the unlawful issuance of Desk Appearance Ticket to Plaintiff on November 21, 2020.

40. As a result of the foregoing, Plaintiff demands judgment against defendant CITY OF NEW YORK in sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

**AND FOR A FOURTH CAUSE OF ACTION
(Negligence)**

41. Plaintiff incorporates by reference the allegations set forth in paragraphs “1” through “40” inclusive as if fully set forth herein.

42. Defendants owed a duty of care to Plaintiff.

43. Defendants breached that duty of care by subjecting him to undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.

44. As a direct and proximate cause of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

45. All of the foregoing occurred without any fault by Plaintiff.

46. The defendant CITY OF NEW YORK, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

47. As a result of the foregoing, Plaintiff demands judgment against defendant CITY OF NEW YORK in sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

**AND FOR A FIFTH CAUSE OF ACTION
(Infliction of Emotional Distress)**

48. Plaintiff incorporates by reference the allegations set forth in paragraphs “1” through “47” inclusive as if fully set forth herein.

49. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff’s statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

50. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

51. The defendant CITY OF NEW YORK, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

52. As a result of the foregoing, Plaintiff demands judgment against defendant CITY OF NEW YORK in sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

AND FOR A SIXTH CAUSE OF ACTION**(Federal Claim For Violation of Fourth and Fourteenth Amendments Rights
Under 42 U.S.C. Section 1983)**

53. Plaintiff incorporates by reference the allegations set forth in paragraphs “1” through “52” inclusive as if fully set forth herein.

54. Defendants knew or should have known that there was no lawful basis for seizing the person of Plaintiff and subjecting Plaintiff to an arrest.

55. That the arrest was initiated and continued without probable cause to believe any crime had been committed by Plaintiff.

56. As a result of the afore-described actions, these defendants individually deprived Plaintiff of the right to be free from unreasonable search and seizures secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments.

57. As a result of the afore-described actions, the defendant by and through the individually named officers deprived Plaintiff of his right to liberty without due process of law secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments to the United States Constitution.

58. The unlawful arrest violated Plaintiff’s rights under the 4th and 14th Amendments to the United States Constitution.

59. Defendants’ actions were undertaken under color of law and would not have existed but for said defendants using their official power.

60. Defendants have failed to properly or effectively train their employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

61. Defendant CITY OF NEW YORK has sanctioned the policy and practices described in the above paragraphs through its deliberate indifference to the effect of said policy upon the constitutional rights of Plaintiff and others similarly situated.

62. Defendant CITY OF NEW YORK hired and retained in its employ police officers with knowledge that said police officers had vicious propensities and were, therefore, unfit to be police officers.

63. Defendant CITY OF NEW YORK'S motivations were in contravention of the U.S. Constitution and the Constitution of the State of New York.

64. The individual police officers who arrested plaintiff conspired with each other to engage in the unlawful conduct including the unlawful arrest and imprisonment of plaintiff.

65. The individual police officers who arrested Plaintiff had actual knowledge of the conspiracy to deprive persons at the aforementioned premises of their rights under the Constitution and each neglected and failed to prevent the interference with Plaintiff's civil rights.

66. The afore-described constitutional violations are all actionable under and pursuant to 42 U.S.C., section 1983.

67. The afore-described acts of the defendants were intentional, willful, and malicious and performed with reckless disregard for and deliberate indifference to Plaintiff's rights.

68. As a result of the foregoing, Plaintiff has suffered damages in an amount in excess of the jurisdiction of all lower courts.

WHEREFORE, Plaintiff demands judgment against the defendants and prays for relief as follows:

Judgment awarding damages in an amount to be determined by the trier of facts on the first through the fifth causes of action; plus interest and the costs and disbursements of this action together with such other and further relief as to this Court seems just and proper.

On the Sixth Cause of action compensatory damages, costs and disbursements herein and attorney fees as provided under 42 U.S.C. Section 1988.

Dated: New York, New York
January 31, 2022

Yours, etc.

MELVIN B. BERFOND
Attorney for Plaintiff
277 Broadway, Suite 810
New York, New York 10007
(212) 385-4800

VERIFICATION

STATE OF NEW YORK)

)ss.:

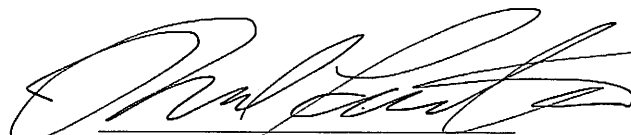
COUNTY OF NEW YORK)

PAUL FAERSTEIN, being duly sworn, deposes and states:

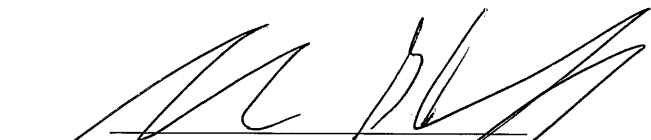
I am a plaintiff in the within action.

I have read the foregoing Complaint and know the contents thereof, and same is true to my knowledge, except as those matters said to be upon information and belief and, as to those matters, I believe it to be true. This Verification is made by me because I am a party in this action.

Dated: January 31, 2022


PAUL FAERSTEIN

Sworn to before me on this
31st day of January, 2022


Notary Public

MELVIN B. BERFOND
Notary Public-State of New York
No. 31-4813767
Qualified in New York County
Commission Expires April 30, 2022

CERTIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK)

MELVIN B. BERFOND, an attorney duly admitted to practice in the Courts of the State of New York, states:

I am the attorney of record for Plaintiff in the within action. I hereby certify, pursuant to 22 NYCRR 130-1.1(a) and after forming an inquiry reasonable under the circumstances, that the within ***Summons and Complaint*** and their respective contentions, are not frivolous as set forth in and defined by 22 NYCRR 1301.1 (c).

Dated: January 31, 2022

/s/ *Melvin B. Berfond*

MELVIN B. BERFOND